



REGIONAL IMMIGRATION
ASSISTANCE CENTERS

Legal Bars to Establishing Good Moral Character

Unwaivable BARS To Establishing Good Moral Character			
Trigger	Offense	Citation	Description
Conduct	Controlled Substance Violation	INA 101(f)(3) 8 CFR 316.10(b)(2)(iii), (iv)	Violated any law relating to controlled substances, except for simple possession of 30g or less of marijuana
	False Testimony under Oath	INA 101(f)(6) 8 CFR 316.10(b)(2)(vi)	False testimony for the purpose of obtaining any immigration benefit (whether or not material)
	Prostitution Offenses	INA 101(f)(3) 8 CFR 316.10(b)(2)(vii)	Engaged in prostitution, attempted or procured to import prostitution, or received proceeds from prostitution
	Smuggling of a Person	INA 101(f)(3) 8 CFR 316.10(b)(2)(viii)	Involved in smuggling of a person to enter or try to enter the United States as defined in the inadmissibility grounds
	Polygamy	INA 101(f)(3) 8 CFR 316.10(b)(2)(ix)	Practiced polygamy as defined in the inadmissibility grounds
	Income from illegal gambling	INA 101(f)(4) 8 CFR 316.10(b)(2)(xi)	Derives income principally from illegal gambling activities
	Habitual Drunkard	INA 101(f)(1) 8 CFR 316.10(b)(2)(xii)	Is or was a habitual drunkard
Admission	Controlled Substance Violation	INA 101(f)(3) 8 CFR 316.10(b)(2)(iii), (iv)	Admission to violating any law related to controlled substances, except for simple possession of 30g or less of marijuana ¹

¹ NOTE: This regulation (which is only triggered if they admit to a CIMT, but “there was never a formal charge...” etc.) conflicts with the statute at 8 U.S.C. § 1101(f)(3), which does not require a conviction.

Unwaivable BARS To Establishing Good Moral Character			
Trigger	Offense	Citation	Description
	One or More Crimes Involving Moral Turpitude (CIMTs)	INA 101(f)(3) 8 CFR 316.10(b)(2)(i), (iv)	Admission to one or more CIMTs except for one petty offense ²
Conviction	Gambling Offenses	INA 101(f)(4) 8 CFR 316.10(b)(2)(x)	Conviction for two or more gambling offenses
	One or More Crimes Involving Moral Turpitude (CIMTs)	INA 101(f)(3) 8 CFR 316.10(b)(2)(i), (iv)	Conviction for one or more CIMTs except for one petty offense
	Aggregate Sentence of 5 Years or More	INA 101(f)(3) 8 CFR 316.10(b)(2)(ii), (iv)	Conviction of two or more offenses with combined sentence of 5 years or more
	Incarceration for 180 Days	INA 101(f)(7) 8 CFR 316.10(b)(2)(v)	Confined <i>as a result of a conviction</i> for 180 days or more during the lookback period (regardless of commission date)

² NOTE: This regulation (which is only triggered if they admit to a CIMT, but “there was never a formal charge...” etc.) conflicts with the statute at 8 U.S.C. § 1101(f)(3), which does not require a conviction.